



2023 Nevada law on septic systems turns plans for dream homes into nightmares



Kurt and Julie Boringdon, Las Vegas natives, beautiful piece of land with a nice view of the strip in the Henderson Foothills on Wednesday, January 29, 2025. Photo by: [Brian Ramos](#)

By [Ilana Williams](#) ([contact](#))

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Julie and Kurt Boringdon found what they considered the perfect property for their retirement in the Foothills neighborhood in far-eastern Henderson.

The property provides an unobstructed view of the Las Vegas Strip, offering a picturesque setting to enjoy the evenings — and for watching fireworks on the Fourth of July and New Year's Eve.

How a septic system works:

According to the federal Environmental Protection Agency, here's how a home septic system works: Wastewater from the house is diverted into a septic tank — a buried, water-tight container usually made of concrete, fiberglass or polyethylene. Solid wastes settle at the bottom of the tank to form sludge while oil and grease floats to the top as scum. Liquid wastewater exits the tank into a drain field; a shallow, covered area made in dry soil. Pretreated wastewater is filtered through the soil. The soil accepts, treats and disperses wastewater as it percolates through the soil and is discharged to groundwater. If the drain field is overloaded, it can flood, causing sewage to flow to the surface or create backups in toilets and sinks back in the home. The wastewater that percolates into the soil removes harmful bacteria, viruses and nutrients. However, according to the Southern Nevada Water Authority, wastewater that is discharged through a septic's leach field could contain high levels of nitrate that can contaminate the groundwater aquifer if released in the soil. Converting from septic to sewer eliminates that risk, enhancing the region's water quality.

"I mean, just look at the view," Julie Boringdon said. "What's not to love?"

But there are logistical hurdles standing in their way: The secluded property is nearly 2,600 feet away from the city of Henderson sewer system, and the family estimates it would cost \$500,000 to extend sewer service to what would be their home.

A previous alternative for the Boringdons would have been installing a septic system to handle the sewage.

There lies another hurdle: Assembly Bill 220, which was signed into law by Gov. Joe Lombardo in 2023, prohibits the installation of new septic systems on properties that use Colorado River water, said Bronson Mack, a spokesperson for the Southern Nevada Water Authority.

That bill doubles down on a 2020 decision by the Las Vegas Valley Water District to stop approving water service connections for septic users at undeveloped properties.

That means the family is in limbo and unable to begin construction on their dream home.

“Never in my dreams I would have thought that we’d be in this position,” Kurt Boringdon said.

Some properties around the Foothills of Henderson are more than 3,000 feet away from the sewer and would cost more than \$2 million to connect, said Lauren Huff, the sales manager at Dream Construction. The company builds luxury homes throughout the valley, including where the Boringdons are hoping to reside.

“They can’t build, they can’t sell (and) they can’t fund the money that it would take to (put) in that infrastructure,” Huff said, referencing all her clients who are stuck not being able to build because of the legislation.

Julie Boringdon says one solution would be grandfathering in homeowners who previously purchased land with the ability to have a septic system.

The water authority board late last year held off on approving a work-around that would have allowed septic system users to pay a one-time \$40,000 fee and \$150 monthly to receive a waiver to utilize. The decision was partially because homeowners who need a septic system told the board during public comment that the financial burden would be too troublesome.

The board was expected to provide an update in January but didn’t include the item on its agenda. A spokesperson said talks would be “forthcoming.”

“Part of the thought was that you’re paying these fees to have a waiver to be on septic, but you’re paying these fees in order to help reduce the amount of septic that are in the valley,” Mack said. “We are looking for a net reduction of septic systems going forward.”

Water officials, whose top priority remains conserving the dwindling supply from the Colorado River resulting from the ongoing drought and overuse, are offering a sewer conversion incentive for properties already with septic. In 2020, they stopped taking new applications for septic.

In the Las Vegas Valley, there are 16,000 existing septic systems. About 7,000 are municipal water customers with septic systems using Colorado River water, the water authority says. Those 7,000 customers discharge nearly 619 million gallons of water annually into their septic systems that can’t be treated for reuse.

By converting from septic to sewer, that wastewater would be treated and returned to Lake Mead via the Las Vegas Wash.

The SNWA offers two pathways in its “Septic to Sewer Conversion Program.”

The first is a partially funded program that provides a rebate up to 85% of the cost of the conversion, up to \$40,000, Mack said.

There’s also a fully funded program with state and federal grant dollars that aims to convert properties located in areas where groundwater resources are experiencing water quality issues or where existing sewer infrastructure is located nearby.

A \$5 million grant from the Environmental Protection Agency and \$1.75 million from the Bureau of Reclamation help fund the program.

The cost to abandon a septic system and connect to the municipal sewer systems ranges in price depending on the distance from the property to the sewer line. The water authority estimates the cost to be from \$30,000 to \$40,000 for homes hooking into an existing sewer line. The expense climbs dramatically for homes where sewer mains need to be extended to the property.

Converting to from septic to sewer involves re-piping the sewer outlet on the home, piping the sewer on the main street and occasionally extending the sewer mains up the street and connecting the property, Mack said.

“What we’ve seen over the past few years through inflation, the cost of capital construction is immensely expensive,” Mack said. “We’re just trying to make sure that we’re aligning fees in a way that allows us to be able to fund this program.”

Cheryl Zimmer, who has lived in Las Vegas since 2006, is helping her friends retire here from California. Together they found a 2-acre property off Farm Road and Desperado Street in the far northwest valley.

However, the property is located 1,900 feet away from the sewer line and they said they were quoted a cost of up to \$950,000 to have sewer service extended there.

“Everything was going along pretty good except for the fact (that) everything changed,” Zimmer said.

In 2021, they submitted a waiver to get septic, but since AB 220 was passed they too remain in limbo.

“A dream property like this only comes once in a lifetime for most people,” Kurt Boringdon said. “It’s hard to replace what’s up here.”